

Based on the above, the court finds that the arbitration provision in the Owner's Manual is not an enforceable written agreement to arbitrate. (*Norcia v. Samsung Telecommunications America, LLC*, *supra*, 845 F.3d at p. 1286 [finding no contract formed by silence of consumer as alleged assent to arbitration agreement within Product Safety & Warranty Information brochure]; *Windsor Mills, Inc. v. Collins & Aikman Corp.*, *supra*, 25 Cal.App.3d at pp. 993-994 [finding that where a plaintiff was not advised of the arbitration provision and had no knowledge of the provision until after the demand for arbitration, there is no agreement to arbitrate, regardless of outward manifestations of apparent assent by acceptance of the object of the contract].) Even if there had been some indication of assent, because of the nature of the agreement is for arbitration, the party sought to be compelled to arbitration must have demonstrated knowledge or expectation of the provision. All of these factors are absent.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 05/26/26.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: **California Fair Plan Association v. Shaver Lake Propane**
Superior Court Case No. 25CECG04660

Hearing Date: May 27, 2026 (Dept. 502)

Motion: Application for Admission of David Dahlmeier to Appear as
Counsel for Defendant Shaver Lake *Pro Hac Vice*

Tentative Ruling:

To continue the hearing to Wednesday July 1, 2026 at 3:30 p.m. in **Department 501** in order to allow the applicant to serve the notice of hearing on the State Bar of California. (Cal. Rules of Court, rule 9.40, subd. (c)(1).) The proof of service must be filed no later than June 15, 2026.

Explanation:

David Dahlmeier is seeking admission to this court to appear *pro hac vice* on behalf of Shaver Lake Propane. Admissions *pro hac vice* are governed by the California Rules of Court, Rule 9.40. California Rules of Court, Rule 9.40, subdivision (c) states in pertinent part,

A person desiring to appear as counsel *pro hac vice* in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period.

The application of David Dahlmeier demonstrates he has paid the fee to the State Bar of California and there is representation that the application has been served on the State Bar. However, there is no representation or proof of service demonstrating the State Bar has been served with the notice of this hearing. The court will continue the hearing to allow the applicant to comply with the Rules of Court and file the required proof of service upon the State Bar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/26/26
(Judge's initials) (Date)